The Kenyan Startup Bill (Senate Bill No. 14 of 2022): Innovation and Entrepreneurship

The Startup Bill awaits presidential assent to become law after it passed National Assembly in January 2025

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Figure 1: The Kenyan Startup Bill (Senate Bill No. 14 of 2022)

Audio Overview

Click to listen to the audio summary

> **Warning**
>
> The audio summary of the **The Kenyan Startup Bill (Senate Bill No. 14 of 2022): Innovation and Entrepreneurship** has been generated by Google NotebookLM from Senate Bill No. 14 of 2022 (Startup Bill) [1]

[1] The Startup Bill 2022

Brief Summary

The Kenyan Startup Bill, 2022 [2] [3] passed National Assembly in January 2025. It aims to foster a culture of innovative thinking and entrepreneurship, providing a legislative framework to encourage growth and sustainable technological development, create employment, and attract investment in Kenyan startups. The bill defines a "startup" as a technology-based innovative entity legally recognized in Kenya:

1. Registered in Kenya (as a private limited company, partnership, LLP, or NGO)
2. Newly registered or in existence for not more than **5 years**
3. Having innovation as its core objective
4. Atleast (**90%**) owned by Kenyan citizens, having its headquarters in Kenya
5. Allocating at least **15%** of expenses to research and development

The bill mandates the Kenya National Innovation Agency to oversee the registration of startups through a Registrar, establish incubation programs at national and county levels, and facilitate fiscal and non-fiscal support including potential **tax incentives**, **grants**, **subsidies**, and **intellectual property protection**. It also outlines the certification process and obligations for startup incubators, and establishes a Startup Fund to provide financial assistance. Furthermore, the bill amends the Science, Technology and Innovation Act, 2013, to enhance support for technological innovations. Having been approved by the National Assembly, the bill now awaits presidential assent to become law.

- **September 14, 2020:** The Startup Bill was officially published in the Kenya Gazette as **Senate Bill No. 14 of 2022**[4]. This marked its formal introduction into the legislative process. The sponsoring Senator was **Johnson Sakaja**, then representing Nairobi County. The bill was brought under the purview of the Ministry of Education, Science and Technology at this stage
- **2020 - 2022:** The bill underwent its initial stages in the Senate. This involved debates, committee reviews, and public consultations to gather input from various stakeholders in the startup ecosystem

  The bill eventually passed through the Senate, allowing it to move to the next stage in the National Assembly.

- **2023 - 2024:** The bill was presented to the National Assembly, where it underwent a similar process of review, debate, and potential amendments by the relevant parliamentary committees.

[2] The Startup Bill 2022
[3] Senate Bill No. 14 of 2022 (Startup Bill)
[4] Senate Bill No. 14 of 2022 (Startup Bill)

- **January 2025:** The **National Assembly finally passed the Startup Bill (Senate Bill No. 14 of 2022)**[5]. This was a crucial milestone, signifying that both houses of the Kenyan Parliament had approved the legislation.
- **January 2025 - Present:** Once the President of Kenya signs the bill, it will officially become law

Other Reads

- National Assembly Approves Startup Bill 2022 to Spur Innovation and Entrepreneurship
- Kenya's Senate passes controversial Startup Bill mandating R&D; spending, local ownership
- Kenya's startup bill mandates R&D investment, but ownership rule sparks concerns

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[5] National Assembly Approves Startup Bill 2022 to Spur Innovation and Entrepreneurship